Central Goods and Services Tax Rules, 2017 - Chapter V: Input Tax Credit & Tax Invoice Rules (Rules 36, 37, 38, 42, 43, 46)

Rule 36. Documentary requirements and conditions for claiming input tax credit.

(1) The input tax credit shall be availed by a registered person, including the Input Service Distributor, on the basis of any of the following documents, namely:— (a) an invoice issued by the supplier of goods or services or both in accordance with the provisions of section 31; (b) an invoice issued by the recipient receiving goods or services under reverse charge; (c) a debit note issued by a supplier in accordance with the provisions of section 34; (d) a bill of entry or any similar document prescribed under the Customs Act, 1962.

(2) Input tax credit shall be availed by a registered person only if all the applicable particulars as specified in the provisions of Chapter VI are contained in the said document.

Rule 37. Reversal of input tax credit in the case of non-payment of consideration.

(1) A registered person, who has availed of input tax credit on any supply of goods or services or both, but fails to pay to the supplier of goods or services or both, the amount towards the value of such supply along with tax payable thereon within a period of one hundred and eighty days from the date of issue of invoice by the supplier, shall furnish the details of such supply and the amount of value not paid and the input tax credit availed of of such supply in Form GSTR-3B for the month immediately following the expiry of the said period of one hundred and eighty days.

(2) The registered person shall be liable to pay interest at the rate specified under sub-section (1) of section 50 for the period starting from the date of availing credit on such supplies till the date when the amount added to the output tax liability is paid.

Rule 46. Tax invoice details.

Subject to rule 54, a tax invoice referred to in section 31 shall be issued by the registered person containing the following particulars, namely:— (a) name, address and Goods and Services Tax Identification Number (GSTIN) of the supplier; (b) a consecutive serial number not exceeding sixteen characters; (c) date of its issue; (d) name, address and GSTIN or UIN, if registered, of the recipient; (e) Harmonised System of Nomenclature (HSN) code for goods or SAC code for services; (f) description of goods or services; (g) total value of supply of goods or services or both; (h) rate of tax (central tax, State tax, integrated tax, Union territory tax or cess); (i) amount of tax charged in respect of taxable goods or services.